

#	Case Name	Tentative
1	Ace Property and Casualty Insurance Company vs. Northwood Villas Maintenance Corporation 2024-01439117	Motion for Summary Judgment and/or Adjudication <i>Continued to 6/25/26. See minute order dated 5/4/26.</i>
2	Coconut Funding Corp. vs. Pearlman 2025-01479665	1. Motion for Preliminary Injunction 2. Case Management Conference <i>Continued to 6/18/26. See minute order dated 5/5/26.</i>
3	Haynes vs. Hyundai Motor America 2025-01464729	Demurrer to Complaint Defendant Hyundai Motor America's (defendant) demurrer to complaint is OVERRULED . Defendant shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the fifth cause of action for fraudulent concealment–inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 [“a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects”]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 4, 6-7, 10, 47-59.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i> , 17 Cal.5th at p. 38.) The court declines to consider and has not considered plaintiff Barney Whitford Haynes's (plaintiff) opposition to the demurrer. The opposition is untimely, and there is no proof of service of the opposition. (See Code Civ. Proc., § 1005, subd. (b).) Defense counsel's reply declaration confirms plaintiff has not served the opposition to date. (See Knighton Reply Decl. ¶¶ 4-5.) Motion to Strike Portions of Complaint Defendant's motion to strike portions of complaint is DENIED .